

Zenith Cloud Storage - Terms of Service v2.0

Effective Date: January 1, 2024 | Version 2.0 | UPDATED - Supersedes all prior versions | Zenith Cloud Inc., 400 Tech Blvd, San Francisco, CA 94105

1. Acceptance of Terms

By creating an account or using Zenith Cloud Storage services, you agree to be bound by these Terms of Service. If you do not agree, you must not use our services. These terms apply to all users including free, individual, business, and enterprise accounts. UPDATED: Continued use of the service after changes constitutes acceptance of updated terms.

2. Account Registration

You must provide accurate and complete registration information. You are responsible for maintaining the security of your account credentials. UPDATED: Accounts are now permitted up to 3 sub-accounts per paid plan for team use. Sharing account credentials with non-authorised users remains prohibited. You must be at least 16 years old to create an account (UPDATED from 18).

3. Data Storage and Retention

Free accounts receive 5 GB of storage (REDUCED from 15 GB). Paid plans receive storage as specified in the plan details. UPDATED: Zenith retains deleted files for 90 days before permanent deletion (extended from 30 days). Inactive account deletion policy: accounts inactive for 24 months (EXTENDED from 12 months) may be deleted with 60 days prior notice.

4. Pricing and Payment

Subscriptions are billed monthly or annually (UPDATED: annual billing now available at 15% discount). Prices are listed in USD and subject to change with 60 days notice (UPDATED from 30 days). Failed payments result in a 3-day grace period (REDUCED from 7 days) before service suspension. UPDATED: Refunds are available within 14 days of billing for monthly plans.

5. Acceptable Use

- You may not store illegal content, malware, or content that infringes third-party rights.
- UPDATED: Automated bulk uploads exceeding 5,000 files per hour are prohibited (limit increased from 1,000).
- Reselling storage capacity to third parties is not permitted under individual or business plans.
- You may not use the service to distribute spam or phishing materials.
- ADDED: Cryptocurrency mining using Zenith infrastructure is strictly prohibited.

6. Service Availability

UPDATED: Zenith now targets 99.9% monthly uptime for paid accounts (improved from 99.5%). Planned maintenance windows are communicated 72 hours in advance (UPDATED from 48 hours). Service credits of 15% of monthly fee (UPDATED from 10%) are issued for downtime exceeding the SLA threshold.

7. Termination

Either party may terminate the agreement with 14 days written notice (REDUCED from 30 days). Zenith may immediately terminate accounts found in violation of the Acceptable Use Policy. Upon termination, you have 14 days to export your data (REDUCED from 30 days) before permanent deletion.

8. Governing Law

UPDATED: These Terms are now governed by the laws of the State of Delaware (CHANGED from California). Any disputes shall first be submitted to binding arbitration before litigation. ADDED: Class action waiver: users waive the right to participate in class action lawsuits against Zenith.